



LICENSE & COLLABORATION AGREEMENT

Exclusive Development, Manufacture and Commercialisation Rights

Agreement Date	15 January 2025
Agreement No.	NP-LCA-2025-0042
Licensor	NovaPharm Biosciences, Inc.
Licensee	BioGen Therapeutics GmbH
Licensed Product	NP-4471 -- Anti-TROP2 Antibody-Drug Conjugate (ADC)
Indication	HER2-low Metastatic Breast Cancer (1L/2L)
Territory	European Economic Area (EEA) + United Kingdom
Duration	15 years from First Commercial Sale, or Patent Expiry
Total Deal Value	Up to EUR 820,000,000 (milestone + royalties)
Governing Law	Laws of Switzerland; ICC Arbitration, Geneva

This agreement is entered into as of the date first written above between the Licensor and Licensee identified herein. Both Parties agree to be bound by all terms and conditions set forth in this document and its exhibits.

STRICTLY CONFIDENTIAL

ARTICLE 1 -- DEFINITIONS AND INTERPRETATION

"Affiliate" Any entity that directly or indirectly controls, is controlled by, or is under common control with a Party, where control means ownership of more than fifty percent (50%) of the voting securities.

"Clinical Trial" Any human clinical investigation of the Licensed Product, including Phase I, IIa, IIb, and Phase III studies, as well as post-approval Phase IV studies required by a Regulatory Authority.

"Development Plan" The written plan appended hereto as Exhibit B, detailing clinical development activities, timelines, and budget allocations for the Licensed Product, as amended from time to time by the Joint Steering Committee (JSC).

"First Commercial Sale" The first bona fide arm's-length sale of the Licensed Product by BioGen or any sublicensee to a Third Party in the Territory following receipt of Marketing Authorisation from the EMA or MHRA, whichever occurs first.

"Net Sales" Gross invoiced sales of the Licensed Product minus deductions for trade discounts, returns, government rebates, freight, and VAT/sales taxes, all calculated in accordance with IFRS accounting standards consistently applied.

ARTICLE 2 -- LICENSE GRANT**2.1 Exclusive License**

Subject to the terms and conditions of this Agreement, NovaPharm hereby grants to BioGen an exclusive, sublicensable, royalty-bearing license under the Licensed IP to develop, manufacture, use, sell, offer for sale, import, and commercialise the Licensed Product solely in the Field of Use within the Territory.

2.2 Sublicensing

BioGen may grant sublicenses to its Affiliates or to bona fide Third-Party partners with NovaPharm's prior written consent (not to be unreasonably withheld or delayed). Each sublicense shall: (i) be consistent with the terms hereof; (ii) include audit rights; and (iii) terminate automatically upon termination of this Agreement.

2.3 Retained Rights

NovaPharm retains the right to conduct research and pre-clinical studies using the Licensed IP outside the Territory and reserves all rights not expressly granted herein. Manufacture for supply to BioGen under Article 4 shall be governed by the Supply Agreement (Exhibit C).

ARTICLE 3 -- FINANCIAL TERMS**3.1 Upfront License Fee**

Within thirty (30) days of the Effective Date, BioGen shall pay to NovaPharm a non-refundable, non-creditable upfront license fee of **EUR 45,000,000 (forty-five million Euros)**, in immediately available funds via wire transfer to the account designated in writing by NovaPharm.

3.2 Development & Regulatory Milestones

Milestone Event	Payment (EUR)
IND filing accepted by EMA/MHRA	5,000,000

Phase II clinical endpoint met (ORR >= 35%)	20,000,000
Initiation of Phase III pivotal trial	30,000,000
Marketing Authorisation Application (MAA) submission	40,000,000
EMA/MHRA Marketing Authorisation granted	75,000,000
First Commercial Sale in EEA or UK	50,000,000
Annual Net Sales exceeding EUR 250M	80,000,000
Annual Net Sales exceeding EUR 500M	100,000,000

3.3 Royalties on Net Sales

Net Sales Tier (per calendar year)	Royalty Rate
Up to EUR 100,000,000	8.0%
EUR 100,000,001 - EUR 300,000,000	10.5%
EUR 300,000,001 - EUR 600,000,000	13.0%
Above EUR 600,000,000	15.0%

ARTICLE 4 -- DEVELOPMENT OBLIGATIONS**4.1 BioGen Development Obligations**

BioGen shall use Commercially Reasonable Efforts (CRE) to develop and commercialise the Licensed Product in accordance with the Development Plan. Without limiting the foregoing, BioGen commits to:

- Initiate a Phase IIb/III clinical trial within twenty-four (24) months of the Effective Date;
- Maintain at least EUR 15,000,000 in annual development expenditure until Marketing Authorisation;
- Submit the Marketing Authorisation Application (MAA) to EMA within sixty (60) months of the Effective Date;
- Provide NovaPharm with quarterly written development reports via the Joint Steering Committee.

4.2 Joint Steering Committee (JSC)

The Parties shall establish a JSC within sixty (60) days of the Effective Date, comprising three (3) representatives from each Party. The JSC shall meet quarterly (in person or by video conference) to review development progress, approve material amendments to the Development Plan, and resolve operational issues. JSC decisions require unanimous consent; unresolved disputes escalate to senior executive officers of each Party.

ARTICLE 5 -- INTELLECTUAL PROPERTY**5.1 Ownership of Background IP**

Each Party shall retain ownership of all Intellectual Property rights owned or controlled by that Party prior to the Effective Date (Background IP). Neither Party acquires any rights in the other Party's Background IP except as expressly licensed herein.

5.2 Foreground IP and Improvements

All Inventions solely made by BioGen personnel in the course of this Agreement (BioGen Foreground IP) shall be owned by BioGen. All Inventions solely made by NovaPharm personnel (NovaPharm Foreground IP) shall be owned by NovaPharm. Joint Inventions shall be jointly owned, and each Party may exploit Joint Inventions within its territory without obligation to account to the other, except where prohibited by applicable law.

5.3 Patent Prosecution

NovaPharm shall be responsible for prosecution and maintenance of Licensed Patents at its own cost. BioGen shall have the right, but not the obligation, to assume prosecution of any Licensed Patent that NovaPharm elects to abandon, with costs borne by BioGen. Each Party shall cooperate reasonably in all patent prosecution activities.

ARTICLE 6 -- CONFIDENTIALITY**6.1 Confidential Information**

Each Party (Receiving Party) agrees to hold in strict confidence all Confidential Information received from the other Party (Disclosing Party) and to use it solely for purposes of this Agreement. Confidentiality obligations shall survive termination for a period of ten (10) years. Permitted disclosures are limited to employees or professional advisers on a need-to-know basis who are bound by written confidentiality obligations no less stringent than those herein.

6.2 Exceptions

- Information that is or becomes public knowledge through no fault of the Receiving Party;
- Information independently developed by the Receiving Party without reference to Confidential Information;
- Disclosure required by law, court order, or regulatory authority, provided prompt notice is given to the Disclosing Party.

ARTICLE 7 -- REPRESENTATIONS AND WARRANTIES

7.1 Mutual Representations

Each Party represents and warrants that: (i) it is duly organised and in good standing under its jurisdiction of incorporation; (ii) it has the authority to execute and perform its obligations under this Agreement; (iii) this Agreement does not conflict with any existing obligation or restriction binding upon it; and (iv) it will perform its obligations in compliance with all applicable laws and regulations, including GCP, GMP, and applicable anti-bribery legislation.

7.2 NovaPharm Additional Warranties

NovaPharm additionally represents and warrants that: (i) it is the sole and exclusive owner of the Licensed Patents and Licensed Know-How; (ii) it has not granted, and will not grant, any conflicting rights in the Territory during the Term; (iii) to its knowledge, the Licensed IP does not infringe any Third-Party rights in the Territory; and (iv) there are no pending or threatened proceedings challenging the validity of the Licensed Patents.

ARTICLE 8 -- TERM AND TERMINATION**8.1 Term**

This Agreement shall commence on the Effective Date and, unless earlier terminated in accordance with this Article 8, shall continue in force until the later of: (i) fifteen (15) years from the date of the First Commercial Sale; or (ii) expiry of the last to expire Valid Claim of the Licensed Patents in any country of the Territory.

8.2 Termination for Convenience

BioGen may terminate this Agreement at any time upon twelve (12) months' prior written notice to NovaPharm. NovaPharm may not terminate for convenience during the first five (5) years of the Term.

8.3 Termination for Material Breach

Either Party may terminate this Agreement upon written notice if the other Party materially breaches any provision hereof and fails to cure such breach within ninety (90) days (thirty (30) days for payment obligations) following written notice specifying the breach in reasonable detail.

8.4 Effects of Termination

- All licenses granted hereunder shall terminate and revert to NovaPharm;
- BioGen shall promptly return or destroy all Confidential Information and Licensed Know-How;
- All accrued payment obligations, confidentiality obligations, and dispute resolution provisions shall survive;
- Ongoing clinical trials may continue for up to twelve (12) months to ensure patient safety.

ARTICLE 9 -- INDEMNIFICATION AND LIABILITY**9.1 Indemnification by BioGen**

BioGen shall indemnify, defend, and hold harmless NovaPharm and its Affiliates, officers, directors, employees, and agents from and against any Third-Party claims, losses, liabilities, damages, costs, and expenses (including reasonable legal fees) arising out of or relating to: (i) BioGen's development or commercialisation of the Licensed Product; (ii) any breach of BioGen's representations, warranties, or obligations; or (iii) gross negligence or wilful misconduct of BioGen.

9.2 Limitation of Liability

IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, REVENUE, OR DATA, EVEN IF ADVISED OF THE POSSIBILITY THEREOF. THE AGGREGATE LIABILITY OF EITHER PARTY SHALL NOT EXCEED THE TOTAL PAYMENTS RECEIVED BY NOVAPHARM IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE CLAIM, EXCEPT IN CASES OF FRAUD OR WILFUL MISCONDUCT.

ARTICLE 10 -- GENERAL PROVISIONS**10.1 Governing Law & Dispute Resolution**

This Agreement shall be governed by and construed in accordance with the laws of Switzerland, without regard to conflict of laws principles. Any dispute arising out of or in connection with this Agreement shall be finally settled under the ICC Rules of Arbitration, with the seat of arbitration in Geneva, Switzerland, conducted in the English

language by a tribunal of three (3) arbitrators.

10.2 Entire Agreement

This Agreement, together with its Exhibits (A through G), constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior negotiations, representations, and agreements, whether written or oral.

10.3 Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party, except to an Affiliate or in connection with a merger, acquisition, or sale of all or substantially all of its assets related to the Licensed Product.

10.4 Force Majeure

Neither Party shall be in breach of this Agreement if failure or delay in performance is caused by circumstances beyond its reasonable control, including acts of God, pandemic, war, government action, or failure of communications infrastructure, provided prompt notice is given and commercially reasonable efforts to mitigate are employed.

IN WITNESS WHEREOF, the duly authorised representatives of the Parties have executed this Agreement as of the date first written above.

NovaPharm Biosciences, Inc.	BioGen Therapeutics GmbH
Signature:	Signature:
_____	_____
Print Name:	Print Name:
_____	_____
Title:	Title:
_____	_____
Date:	Date:
_____	_____

Exhibits: A -- Licensed Patents | B -- Development Plan | C -- Supply Agreement | D -- Quality Agreement | E -- Pharmacovigilance Agreement | F -- Press Release Template | G -- Initial Royalty Report Form